

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR AUGUST 14, 2026 AT 8:30 A.M.**

22. S-CV-0057096 IRPO BURKS, TAMRA

This tentative ruling is issued by the **Honorable Leon A. Dixon**. If oral argument is timely requested, it will be heard on **August 17, 2026, at 8:30 a.m. in Department 41**.

Real Party in Interest Aaryn'Camri Smith's Application to Vacate and Set Aside Judgment

Preliminary Matters

The court, on its own motion, takes judicial notice of the court record in the matter of S-DR-0066681. Pursuant to Evidence Code section 455, if the parties wish to address judicial notice, the parties may do so at the hearing.

Ruling on Application

On February 20, 2026, Jermain Newell and Tamra Burks—parents and joint legal custodians of Kennedy Jordyn Smith—filed a name change petition to change Kennedy Jordyn Smith's name to Kennedy Jordyn Newell. They were the only parties listed as parents on the petition. On June 15, 2026, the court granted the petition in case number S-CV-0057096.

On July 21, 2026, Aaryn'Cammri Smith applied ex parte to vacate and set aside the court's June 15, 2026, order. The court set the application on a shortened notice for hearing.

According to the May 2, 2025, Stipulation and Order for Custody and/or Visitation in case number S-DR-0066681, Aaryn'Cammri Smith, Jermain Newell, and Tamra Burks share joint legal and physical custody of Kennedy. Aaryn'Cammri contends the court's order changing Kennedy's last name is void because Aaryn'Cammri was not served with the petition, the order violates the parties' stipulation, Aaryn'Cammri does not consent to the name change, and the order was obtained through fraud.

Code of Civil Procedure section 1277 outlines the notice process for name change petitions. Notably, a copy of the court's order to show cause must be published in a newspaper of general circulation for 4 weeks. (Code Civ. Proc., § 1277(a)(2)(A).) Moreover, "if a petition has been filed for a minor by a parent and the other parent, if living, does not join in consenting thereto, the petitioner shall cause, not less than 30

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days before the hearing, to be served notice of the time and place of the hearing or a copy of the order to show cause on the other parent pursuant to Section 413.10, 414.10, 415.10, or 415.40.” (*Id.* at subd. (a)(4).) If the court’s order cannot reasonably be personally served on the other parent, “the court may order that notice be given in a manner that the court determines is reasonably calculated to give actual notice to the nonconsenting parent.” (*Ibid.*)

Here, there is insufficient evidence that Aaryn’Cammri Smith, as a parent with joint legal custodian of Kennedy Jordyn Smith, was personally served with the court’s order to show cause or the name change petition, or that the court permitted alternative service of its order to show cause on Aaryn’Cammri Smith. Accordingly, Aaryn’Cammri Smith’s motion is granted. (Code Civ. Proc., § 473, subd. (d).) The court’s decree changing name filed on June 15, 2026, is set aside.